

**BEFORE THE
FEDERAL MARITIME COMMISSION**

INFORMAL DOCKET NO. 2034(I)

SEALINK DO BRASIL

v.

**HAPAG-LLOYD AG and
HAPAG-LLOYD USA LLC**

**RESPONSE OF HAPAG-LLOYD AG
AND HAPAG-LLOYD USA LLC**

Hapag-Lloyd AG (“HLAG”) and Hapag-Lloyd USA LLC (“HLUSA”) (and together, “Hapag-Lloyd”), through counsel, hereby respond to the complaint in FMC Informal Docket No. 2034(I). As noted in the attached affidavits, Hapag-Lloyd does NOT consent to the resolution of this dispute by a settlement officer pursuant to Subpart S of the Commission’s regulations.

Summary of Argument

Section 41102(c) of the Shipping Act should not apply to charges incurred outside of the United States, such as the charges herein at issue. Even if Section 41102(c) is applied, the charges which are the subject of this proceeding were properly billed to the consignee named on the HLAG bill of lading in accordance with FMC regulations and were therefore lawful. Finally, this proceeding raises serious issues under the Administrative Procedure Act in light of the fact that the Commission has already dismissed a charge complaint identical to the claims being made here.

Statement of Facts

HLAG's customer, an NVOCC known as Asstra NY Inc. ("Asstra"), booked a shipment of household goods from the United States to Brazil. In the bill of lading instructions provided to HLAG by Asstra, HLAG was instructed to list Sealink do Brasil as consignee on the HLAG bill of lading. See Exhibit #1 hereto. HLAG complied with these instructions and issued its bill of lading HLCUBSC2402BEKI1 showing Sealink do Brasil as consignee. A copy of that bill of lading is an exhibit to Sealink's complaint.

Upon arrival in Brazil, the cargo was not removed from the marine terminal within the allotted free time. Accordingly, HLAG's agent issued invoices for demurrage charges. Sealink initially refused to pay the charges. Brazilian counsel for HLAG threatened legal action if the charges were not paid. Eventually, a compromise was reached pursuant to which Sealink agreed to pay the charges over time. At no time did HLAG or anyone acting on HLAG's behalf ever threaten to deny service to Sealink, and HLAG's records reflect that Sealink shipped cargo with HLAG throughout 2024 and into 2025. HLAG categorically denies cutting off service to Sealink or threatening to do so.

After making the final payment pursuant to the compromise agreement, Sealink filed a charge complaint (assigned #20251024) with the Federal Maritime Commission, alleging that the charges were unlawful. That charge complaint was dismissed. Sealink then filed the complaint herein at issue.

Preliminary Matters

Before addressing the merits of the claim, there are some preliminary matters that need to be addressed.

A. The Complaint Is Not Properly Verified And Should Be Dismissed

Exhibit No. 1 to Subpart S of the Commission's regulations requires that a complaint filed pursuant to that Subpart include a verification stating that the facts set forth there are true. This complaint contains no such verification. Accordingly, it is deficient on its face and should be dismissed.

B. The Translation of Foreign Language Documents Is Not Verified

If the complaint is not dismissed, then at a minimum all documents submitted in Portuguese and accompanied by an English translation should be disregarded.

Under 46 C.F.R. §502.305(a), many of the Commission's procedural regulations do not apply to informal dockets. However, under 46 C.F.R. §502.305(b), one of the requirements that remains applicable is the requirement of 46 C.F.R. §502.7 that any foreign language documents filed or offered in any proceeding before the Commission be accompanied by an "English translation thereof duly verified under oath to be an accurate translation." The documents submitted by Sealink in this proceeding do not comply with this requirement and are therefore inadmissible and should be disregarded.

C. The Complaint Should Be Dismissed For Failure To State A Claim

The complaint should be dismissed for failure to state a claim for which relief may be granted.

The only section of the Shipping Act that the complaint alleges to have been violated is § 41102(c), which makes it unlawful for an ocean common carrier to fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property. 46 U.S.C. § 41102(c). The Commission has promulgated an interpretative rule that interprets § 41102(c) as requiring certain elements be

shown to establish a successful claim for reparations. 46 C.F.R. § 545.4. Among the elements that must be established in order to maintain a successful claim under § 41102(c) is that “the claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis.” 46 C.F.R. § 545.4(b).

Here, the complaint does not allege that the conduct at issue was “normal, customary, and continuous.” Moreover, it does not allege any facts that would support a conclusion that the conduct was “normal, customary and continuous.” Indeed, the complaint admits that the conduct at issue relates to a single shipment. Because the complaint fails to allege a necessary element of a successful claim under § 41102(c) and also fails to allege any facts which support said element, it fails to state a claim as a matter of law and should be dismissed.

D. HLUSA Should Be Dismissed As A Party

The informal complaint names Hapag-Lloyd USA LLC as a respondent, apparently under the mistaken assumption that HLUSA is the agent of HLAG. This is not correct. As the Commission’s own public records demonstrate, HLUSA is an entirely separate ocean common carrier assigned FMC Org No. 020438. More importantly, the complaint contains no allegations whatsoever with respect to any act or omission on the part of HLUSA. Therefore, the complaint fails to state a claim against HLUSA, and HLUSA should be dismissed as a party.¹

Argument

A. Section 41102(c) Should Not Be Applied To Charges Outside of the United States

HLAG has not found any instance in which section 41102(c) of the Act has been applied to demurrage charges assessed outside of the United States. HLAG has not found any Commission statement or guidance directly addressing the issue but, for the reasons stated

¹ HLUSA, like HLAG, does not consent to resolution via the small claims procedure. HLUSA reserves all rights to respond to the merits of any arguments that may be made against it.

below, believes that the application of section 41102(c) to demurrage and detention should be limited to demurrage and detention incurred/assessed in the United States.

The first reason application of section 41102(c) should be limited to demurrage and detention in the United States is that of international comity. Application of the Act to conduct occurring within a foreign country arguably intrudes upon the sovereignty of that country and has the potential to create conflicts between the legal requirements of the nations involved. The Commission has been mindful of differences between demurrage and detention practices in the U.S. and other countries in the past, including those of Brazil, the country herein at issue. See, Fact Finding Investigation No. 28, Interim Report, September 4, 2018, pp. 15-16. The Commission has been careful to avoid potential conflicts with other agencies (such as the Surface Transportation Board) when it comes to conduct in the United States. 85 *Fed. Reg.* 29638, 29650 (May 18, 2020). It should exercise the same caution when deciding whether to impose U.S. requirements applicable to demurrage/detention on conduct occurring on foreign soil.

The second reason section 41102(c) should not be applied to demurrage charges incurred/assessed outside of the United States is that this issue has not been considered previously and all rulemaking activity related to the issue appears to be based on the implicit assumption that it would apply only in the United States. Examples of this implicit assumption include the following:

- The so-called interpretative rule is intended to “promote fluidity in the U.S. freight delivery system.” 85 *Fed. Reg.* at 29639.
- The Commission highlighted the nationwide, as compared to worldwide, scope of its jurisdiction. 85 *Fed. Reg.* at 29639.
- The focus of the guidance provided by the interpretative rule is to “improve throughput velocity at U.S. ports.” 85 *Fed. Reg.* at 29640.

All of the foregoing suggest that the Commission's focus was on demurrage/detention in the United States.

The third and final reason the Commission should not apply section 41102(c) to demurrage/detention charges incurred outside of the United States is a practical one. The ocean carrier industry correctly predicted that the adoption of the interpretative rule would result in an explosion in the amount of litigation before the Commission. 85 *Fed. Reg.* at 29647-48. If the Commission were to extend the application of section 41102(c) to demurrage/detention incurred outside of the United States, there is once again likely to be a significant increase in the amount of litigation before the Commission.

B. The Charges Were Lawful

The sole basis upon which Sealink challenges the reasonableness of the charges is that the charges were billed to the incorrect entity. This allegation does not withstand the most cursory scrutiny.

The Commission has adopted regulations regarding the proper issuance of demurrage invoices. The consignee is expressly identified as an entity to which an invoice may be properly issued. 46 C.F.R. §541.4(a)(2). There is no dispute that Sealink was named as consignee on the bills of lading issued by HLAG for these shipments. Accordingly, the invoice was properly issued.

The fact that Sealink does not have a contractual relationship with HLAG is irrelevant. As the Commission stated in adopting the rule on the proper issuance of invoices:

The Commission does not adopt the concept in the proposed rule's preamble that consignees should be required to be listed on the bill of lading in order to be billed. Rather, it is the consignee's contractual privity with the shipper that determines whether the consignee can be billed.

89 *Fed. Reg.* 14330, 14340 (February 26, 2024) (emphasis added). Sealink admits in the charge complaint that it has an agency relationship with the party that contracted with the ocean common carrier for the transportation. Accordingly, the requisite contractual privity exists and issuance of the invoice to Sealink was reasonable.

Sealink appears to argue indirectly that it was not the ultimate recipient of the cargo and hence not the true consignee. There are two flaws with this argument. First, the definition of “consignee” in Part 541 of the Commission’s regulations reads as follows:

Consignee means the ultimate recipient of the cargo; the person to whom final delivery of the cargo is to be made.

46 C.F.R. §541.3. Here, even if Sealink was not the ultimate recipient of the cargo, it was the person to whom final delivery of the cargo was to be made by HLAG. Accordingly, Sealink meets the definition of a “consignee” as HLAG was under no obligation to deliver the cargo to anyone other than Sealink.

The second flaw in Sealink’s position is that it would upend existing practices within the shipping industry, have a negative competitive impact on NVOCCs, and seriously hamper freight fluidity. In the case of shipments tendered by NVOCC, the NVOCC is typically named as the shipper on the ocean carrier bill of lading and the NVOCC or its agent is typically named as consignee. The bill of lading herein at issue reflects this practice, which exists for two reasons. First, it enables the NVOCC (either directly or through its agent) to control release of the cargo, thereby ensuring the NVOCC is paid. If the NVOCC’s underlying customer were listed as consignee on the HLAG bill of lading, the NVOCC would lose control over release of the cargo and thus its ability to ensure the receipt of payment from its customer. Second, this practice keeps the identity of the NVOCC’s customer from the ocean common carrier, thereby preventing

the ocean carrier from “cherry picking” the most desirable of the NVOCC’s customers by approaching them regarding a direct carrier-shipper relationship.

If charging Sealink for demurrage is found to be unreasonable, then ocean common carriers would be forced to choose between billing the shipper (who has no role in the retrieval of the cargo and arguably is not incentivized by demurrage charges) on the one hand and, on the other hand, requiring the NVOCC to disclose its underlying customer so that the ocean common carrier can bill the NVOCC’s consignee, with whom the ocean carrier has no contractual relationship. This would slow down the delivery of cargo and hamper freight fluidity. In other words, if it is improper to bill the destination agent of an NVOCC/shipper for demurrage when that agent is listed as consignee on the master B/L, then ocean common carriers will be severely hampered in their ability to collect lawful demurrage charges to the detriment of freight fluidity and the entire supply chain.

This case should be decided in favor of HLAG on the basis of the Commission’s existing regulation, which permits the billing of demurrage to the entity named as consignee on the ocean carrier bill of lading. If that entity does not wish to be liable for such charges, that is something to be addressed in the agreement between the NVOCC and the destination agent. It is not a basis for requiring wholesale changes in the way ocean carriers and NVOCCs do business with one another.

C. This Proceeding Raises Concerns under the Administrative Procedure Act

The claim being made in this proceeding is identical to the claim made by Sealink in Commission charge complaint proceeding #20251024. As noted above, that charge complaint was dismissed. The consideration of a complaint that has already been considered and dismissed by the Commission raises serious concerns under the Administrative Procedure Act.

The charge complaint process was established by Congress in 2022 when section 41310 was added to the Shipping Act. Section 41310(a) provides that a person may submit a complaint about charges assessed by a common carrier to the Commission. The Commission is to promptly investigate the complaint (46 U.S.C. §41310(b)) and, if it determines the charges do not comply with applicable provisions of the Shipping Act, to order the refund of the charges. 46 U.S.C. §41310(c). The burden of establishing the reasonableness of demurrage/detention charges in a charge complaint proceeding is on the carrier. 46 U.S.C. §41310(b)(2).

The fact that the same claim herein at issue was brought under §41310 and dismissed means that as a matter of law the Commission determined in the charge complaint proceeding that Hapag-Lloyd proved the charges herein at issue to be reasonable. A contrary finding in this proceeding would mean that on the basis of the same evidence and arguments made in the charge complaint proceeding, the Commission is holding that Sealink has met the burden of proving the charges to be unreasonable. That is a legal and logical non-sequitur.

Under the Administrative Procedure Act, courts will set aside agency actions that are arbitrary, capricious, an abuse of discretion, or otherwise not in accordance with law. 5 U.S.C. §706(2). An agency's action is arbitrary and capricious when it departs from its own precedent without adequate explanation. *Michigan Consol. Gas Co. v. FERC*, 883 F.2d 117, 122 (D.C. Cir. 1989) (“[I]t is well established that an agency may not ‘casually ignore’ its own past decisions.”). A decision finding that Sealink has proved the charges to be unreasonable based on the same facts and arguments upon which it has already been found that the charges to have been proved reasonable by the party bearing the burden of proof in that proceeding departs from prior precedent. Moreover, such a ruling would be irrational and illogical and therefore arbitrary and

capricious.² *Am. Fed’n of Gov’t Emps. v. FLRA*, 470 F.3d 375, 380 (D.C. Cir. 2006) (“Certainly, if the result reached is illogical on its own terms, the ... order is arbitrary and capricious.”).

Conclusion

For the foregoing reasons, the complaint should be dismissed with prejudice and this proceeding discontinued.

Respectfully submitted,

/s/ Wayne Rohde
Wayne Rohde
Rachel Schwartz
COZEN O’CONNOR
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(202) 463-2507
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Counsel to Hapag-Lloyd AG and Hapag-Lloyd USA LLC

August 4, 2025

² In any event, no ruling adverse to Hapag-Lloyd should be issued in this proceeding unless and until the Commission furnishes Hapag-Lloyd with the identity of the Commission employee(s) that decided to dismiss the charge complaint, documents relating to that decision, and Hapag-Lloyd has been afforded the opportunity to depose those individuals should Hapag-Lloyd consider it necessary to do so.

CERTIFICATE OF SERVICE

I hereby certify that on the 4th day of August, 2025, the foregoing Response was served
via electronic mail on:

Andre Luis Porto Moreira
amoreira@sealinkbrasil.com.br

/s/ Wayne Rohde

Wayne Rohde

EXHIBIT #1

BILL OF LADING INSTRUCTIONS

MESSAGE CODE : IFTMIN ARRIVAL DATE/TIME : 2024/02/19 21:39:47
FUNCTION CODE : ORIGINAL MESSAGE SENT AT : 2024/02/19 21:38:00
HL EDI CONVERTER : 2024/02/19 21:39:47

EDI PARTNER : ASSTRA 037
CUSTOMER REFERENCE :
LOKAL BOOKING REF. :
CONTACT PERSON : RICHARD LIBERTO
TELEPHONE NUMBER : 001 3322131950

TECH. EDI-SENDER : INTTRA 002 (00762228)
PRODUCT CHANNEL : SI ACT 3.0
UNB-PARTNER-ID : INTTRA
MESSAGE NO. : 734789443 (Doc-ID 5915337104)
EDIFACT REFERENCE : 460874604
HL SHIPMENT : 69263942
DG CONTAINED : NO
VGM CONTAINED : NO

PAGE 1

TOTALS: EDI (CNT-Segment) CALCULATED (SUM UP):

NUMBER OF CONTAINER : 1 1
NUMBER OF PACKAGES : 351 351
TOTAL GROSS WEIGHT : KGM 9118.0 KGM 9118.0
TOTAL VOLUME : MTQ 30.00 MTQ 30.00

EDI VERSION NO : 001.000

TRANSPORT TYPE : / CUSTOMER

CUSTOMS REF 1 : AES-ITN NOEEI 30.37 (A)

VESSEL(S):

SECT. DP-VOYAGE SCHED.VOY. VESSEL NAME EXT.VOY.NO

SRT : ETD

TO :

POL : USPEF PORT EVERGLADES, FL, UNITED STATES ETD

POD : BRSSZ SANTOS, SP, BRAZIL ETA

TO :

END : ETA

BL-ROUTING:

SRT: ETD
POL: USPEF PORT EVERGLADES, FL, UNITED STATES ETD
POD: BRSSZ SANTOS, SP, BRAZIL ETA
END: ETA

MESSAGE CODE : IFTMIN ARRIVAL DATE/TIME : 2024/02/19 21:39:47
FUNCTION CODE : ORIGINAL MESSAGE SENT AT : 2024/02/19 21:38:00
EDI PARTNER : ASSTRA 037 MESSAGE NO : 734789443
HL SHIPMENT : 69263942 PAGE 2

** PARTIES **

CN Org-No. :
Name : SEALINK DO BRASIL TRANSPORTES
& Address NACIONAIS E INTERNACIONAIS LTDA
RUA DOMINGOS MARTINS 121 SALA 301
CENTRO CANOAS - RS - BRASIL / CEP
92010-170
CNPJ.: 08.672.251/0001-24***

IT Org-No. : 762228 INTTRA 002

N1 Org-No. :
Name : SEALINK DO BRASIL TRANSPORTES
& Address NACIONAIS E INTERNACIONAIS LTDA
RUA DOMINGOS MARTINS 121 SALA 301
CENTRO CANOAS - RS - BRASIL / CEP
92010-170
CNPJ.: 08.672.251/0001-24***

RQ Org-No. : (3590842) ASSTRA 037
Org-Id : 990059
Name : ASSTRA NY INC.
& Address 67 NEW DORP PLAZA NORTH STATEN
ISLAND UNITED STATES
Contact : RICHARD LIBERTO
Telephone : 001 3322131950
Email : SUPPORT.NY@ASSTRA.US

SH Org-No. :
Name : ASSTRA NY INC
& Address 67 NEW DORP PLAZA NORTH
STATEN ISLAND, NEW YORK, 10306
TEL: 332.213.1950
TAX ID : 812690185
Reference : AST2240158

MESSAGE CODE : IFTMIN ARRIVAL DATE/TIME : 2024/02/19 21:39:47
FUNCTION CODE : ORIGINAL MESSAGE SENT AT : 2024/02/19 21:38:00
EDI PARTNER : ASSTRA 037 MESSAGE NO : 734789443
HL SHIPMENT : 69263942 PAGE 3

** REMARKS (SHIPMENT) **

1 ORIGINAL(S) FREIGHTED TO : RQ
1 ORIGINAL(S) UNFREIGHTED TO : RQ
1 COPY(S) FREIGHTED TO : RQ

** EXPORT-REMARKS **

** MTD-DETAILS **

DOC Type : MD MTD-Type : BL Document Number :
Originals : 1 Copies : 1
Orig.unfreighted : 1 Cop.unfreighted :
Shipped On Board : Incoterms :
Date of Issue : Place of Issue :
Freighted : Y Payable at :
Order-BL :
MTD-Vessel : 407S MAERSK MONTE AZUL
2. MTD-Vessel :

BL-CLAUSES:

FREIGHT PREPAID

INV SHIPPER REFERENCE: AST2240158

REM CHARGE_TYPE-BASIC FREIGHT; PAYER-SHIPPER; TERM-PREPAID;
REM CHARGE_TYPE-DESTINATION TERMINAL HANDLING CHARGES; PAYER-CONSIGNEE;
REM TERM-COLLECT;

REM CONTRACT NUMBER: S23NEA623

REM CONTACT FOR PARTY RQ:
REM -----
REM RICHARD LIBERTO
REM TE: +13322131950
REM EM: PREALERTS.NY@ASSTRA.US
REM EM: SUPPORT.NY@ASSTRA.US

MESSAGE CODE : IFTMIN ARRIVAL DATE/TIME : 2024/02/19 21:39:47
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HL SHIPMENT : 69263942 PAGE 4

** CONTAINER **

CONTAINER-NO	HL	TYPE	TYPE-DESCRIPTION POSITIONING / PICK-UP	LAST USED IN SHIPMENT
FANU1300800	N	S 45G0	HIGH CUBE CONT. given by EDI-partner: 69263942	69263942 *

SEALS : Seal No 22164830 Seal Type SHIPPER

REMARKS:

SOWN CONTAINER - CARGO WEIGHT: 9118 KGM
SOWN CONTAINER - GROSS VOLUME: 30 MTQ

** CARGO-DETAILS **

CARGO-NUMBER : 1
SHORT-DESCRIPTION : WATER POLL
HS-CODE : 97 97 00 COMMODITY-CODE : 979700

CARGO-DESCRIPTION:

MTD 1 X 40FT HC CONTAINER SLAC:
351 PACKAGES HOUSEHOLD
GOODS AND PERSONAL EFFECTS

TARE WEIGHT :3900 KGS

NCM 9797

WOODEN PALLET : NOT APPLICABLE

***PHONE.: 55 51 3051 1841
/ 1842

EMAIL: LFLECK@
SEALINKBRASIL.COM.BR;
AMOREIRA@
SEALINKBRASIL.COM.BR***

FREIGHT PREPAID
CSC/DTHC COLLECT
ORIGINALS AT DESTINATION
NOEEI 30.37 (A)

NCM 9797

MESSAGE CODE : IFTMIN ARRIVAL DATE/TIME : 2024/02/19 21:39:47
FUNCTION CODE : ORIGINAL MESSAGE SENT AT : 2024/02/19 21:38:00
EDI PARTNER : ASSTRA 037 MESSAGE NO : 734789443
HL SHIPMENT : 69263942 PAGE 5

ITEM-NUMBER : 000001 / 000001 EDI-ITEM-ID : 1.0
QUANTITY PACKING-DESCRIPTION CODES: UN IMO CUSTOMER
OUTER : 351 Package PK PK
INNER :

WEIGHTS	KGM	GROSS	9118.000	NET	NEC
VOLUME	MTQ	GROSS	30.000		
DIMENSIONS		LENGTH		WIDTH	HEIGHT
IN CONTAINER		FANU1300800	- CTR LAST USED IN SH:	69263942 *	
			- GIVEN BY EDI-PARTNER:	69263942	

ITEM-DESCRIPTION:

MARKS-AND-NUMBERS:

Relevant Parameter Setting

Source:	FIS2 Partner Profile
SHIPPING INSTRUCTION MASTER:	INTTRA 002 - GEB
TECHNICAL SENDER	INTTRA 002
APERAK SHOULD BE RETURNED TO SENDER	N
GET BUSINESS SENDER OF EDI MESSAGE	RQ IN MESSAGE
ORGCODE LIST FOR ORG-ID-TRANSLATION	INT-TT
WARNING WHEN SEQUENCE ERROR	N
WARNING WHEN SEQUENCE ERROR ASIA	N
WARNING WHEN SEQUENCE ERROR EUROPE	N
WARNING WHEN SEQUENCE ERROR MED	N
WARNING WHEN SEQUENCE ERROR NORTH AMERICA	N
WARNING WHEN SEQUENCE ERROR LATIN AMERICA	N
MEMO RECEIVER ORG CODE UNKNOWN ASIA	EASIA
MEMO RECEIVER ORG CODE UNKNOWN EUROPE	BSEEDI
MEMO RECEIVER ORG CODE UNKNOWN MED	RMECS
MEMO RECEIVER ORG CODE UNKNWON NORTH AMERICA	RAMCSEDI
MEMO RECEIVER ORG CODE UNKNOWN LATIN AMERICA	RSACS

 Relevant Parameter Setting

Source:	FIS2 Partner Profile
SHIPPING INSTRUCTION PROFILE:	RNA QSC INTTRA
TECHNICAL SENDER	INTTRA 002
RESPONSIBLE HL-OFFICE	HAPAGL 150
AUTOMATIC UPDATE OF A SHIPMENT	Y
SUPPRESS AUTOMATIC REPLACEMENT HANDLING	Y
CREATE EVERY CARGO	Y
USE CARGO DESCRIPTION OPTIMIZE FUNCTIONS	N
CARGO OPTION FOR KIND OF CARGO PROCESSING	MAIN/SUB
UPDATE SPECIAL CARGO	Y
CONVERT ISO-PACKAGE-CODE TO PACKING-DESCRIPTION	Y
CONVERT UN-PACKAGE-CODE TO PACKING-DESCRIPTION	Y
DELETE CTR SPECIAL DATA WHEN NOT EXISTING IN EDI	N
GENERATE 2. CHARACTER OF MTD-TYPE FROM SH-DEFINIT.	Y
GENERATE IS VIA SALES-RESPONSIBILITY OF GIVEN IS	Y
SEND MEMO WHEN MESSAGE WAS RECEIVED	Y
ACTIVATE REPLACEMENT COMPARE	Y
SPLIT MARKS AND NUMBERS	Y
MTD-NUMBER REQUIRED	N
SEARCH HS-CODE	N
UPDATE WITHDRAW ANNOUNCEMENT IF NECESSARY	N
UPDATE CONTAINER DATA	Y
AUTO-UPDATE: SUPPRESS UPDATE OF CARGO	N
AUTO-UPDATE: SUPPRESS UPDATE OF CARGO FOR CUSTOMER	MERCK 001
UPDATE HEADER DATA	Y
UPDATE ROUTING DATA	N
UPDATE REACTIVATE	N
UPDATE ANNOUNCEMENT	N
UPDATE MTD WHEN EXACTLY ONE EXISTS AND NO MTD#	REPN
AUTO-UPDATE: EXTENDED PRE-CHECKS TO BE DONE	Y
AUTO-UPDATE: CHECK B/L- VS. OPERATIVE ROUTING	N
AUTO-UPDATE: IGNORE DIFFERENT CONTAINER-NUMBERS	N
SEARCH ORGANISATION PLACE VIA SEARCH ENGINE	Y
MINIMUM RELEVANCE OF SEARCH ENGINE RESULTS	70
AUTOMATIC CREATION OF ORGANISATION PLACES	N

ESI EXCEPTION

01. Shipment(s) reported: 69263942, Shipment(s) determined: NONE
02. Customs Reference not created (Type: AES-ITN, Reference: NOEEI 30.37(A), Level: Shipment). Please check via button "CORRECTING TRX".
03. Reported MTD routing not processed due to parameter settings. Please check and process manually.
04. SEALIN 099 for TPF CN was selected and linked with a 95,00% match based on the following address information: SEALINK DO BRASIL TRANSPORTES NACIONAIS E INTERNACIONAIS LTDA RUA DOMINGOS MAR. Please verify/correct via button "CORRECTING TRX".
05. SEALIN 099 for TPF N1 was selected and linked with a 95,00% match based on the following address information: SEALINK DO BRASIL TRANSPORTES NACIONAIS E INTERNACIONAIS LTDA RUA DOMINGOS MAR. Please verify/correct via button "CORRECTING TRX".
06. No matchcode found for TPF SH. Address processed and linked with matchcode DUMMY 001. Please correct matchcode via button "CORRECTING TRX".
07. ACCM: Template Clause created. Please complete text. Usage: MTD , Number: 001062.
08. ACCM: Template Clause created. Please complete text. Usage: MTD , Number: 000353.

Federal Maritime Commission

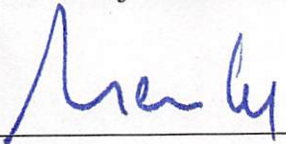
Washington, DC.

Informal Docket No. 2034(I)

Respondent's Affidavit

Respondent Hapag-Lloyd AG does **NOT** authorize the Small Claims Officer to determine the above-numbered claim in accordance with subpart S (46 CFR 502) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission Review.

By: _____



Name: Thomas Mansfeld

Title: General Counsel

Date: 30th July 2025

Read and explained and the Deponent having)
understood the nature, effect and contents)
hereof, signed at Hamburg, Germany on this)
30 day of July 2025, under and in)
terms of the laws of Germany.)

BEFORE ME

Dr. Axel Pfeifer
-Notary Public-



DR. AXEL PFEIFER
DR. TIL BRÄUTIGAM
DR. JAN C. WOLTERS
DR. JOHANNES BEIL
DR. THOMAS DIEHN LL.M. (HARVARD)

- NOTARIES -

Bergstraße 11, 20095 Hamburg, Germany
Telephone: +49 (0) 40 30 200 60
Telefax: +49 (0) 40 30 200 635
E-Mail: info@notariat-bergstrasse.de



Deed Index No. 1589/2025/P
25-00113 P\GB

This is to certify that before me,

Dr. Axel Pfeifer
Bergstraße 11, 20095 Hamburg,

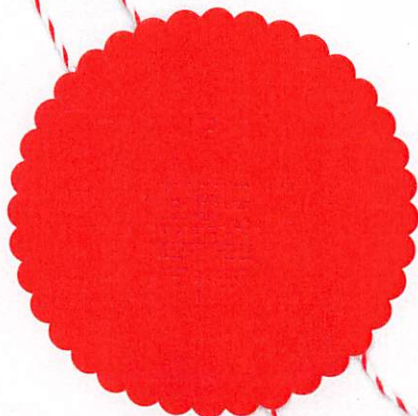
a notary public in and for the FREE AND HANSEATIC CITY OF HAMBURG, GERMANY,
duly admitted and sworn in, there appeared this day

Mr. Thomas M a n s f e l d ,
born on 9 January 1962,
business address: Ballindamm 25, 20095 Hamburg,
personally known to me,

and acknowledged his foregoing signature as his free act and deed.

Witness my hand and seal.

Hamburg, 30 July 2025



(Dr. Pfeifer)
-Notary Public-

Federal Maritime Commission

Washington, DC.

Informal Docket No. 2034(I)

Respondent's Affidavit

Respondent Hapag-Lloyd USA, LLC does **NOT** authorize the Small Claims Officer to determine the above-numbered claim in accordance with subpart S (46 CFR 502) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission Review.

By: David P. Zimmerman

Name: David P. Zimmerman

Title: President + CEO, Hapag-Lloyd USA, LLC

Date: July 31, 2025

Verification

David P. Zimmerman, being first duly sworn on oath deposes and says that he or she is President + CEO, (Title or Position) and is the person who signed the foregoing and agrees without qualification to its truth.

Subscribed and sworn to before me, a notary public in and for Isabella Aguilar, this July day of 31st, 2025.

(Seal)

(Notary Public)

My Commission expires:

Isabella Aguilar

Isabella Aguilar

NOTARY PUBLIC

Cobb County, GEORGIA

My Commission Expires 11/17/202